

STATE OF NEW YORK

8483--A

2025-2026 Regular Sessions

IN SENATE

August 20, 2025

Introduced by Sen. C. RYAN -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Internet and Technology in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to prohibiting online retailers from basing prices on certain criteria

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 219 to read as follows:

3 § 219. Online retailer pricing. 1. For the purposes of this section,
4 the following terms shall have the following meanings:

5 (a) "Coupon" shall mean any method by which a consumer receives a
6 discount on the purchase of any item that is funded, produced, spon-
7 sored, promoted, or furnished, either directly or indirectly, by a busi-
8 ness, including, but not limited to, a paper coupon, a digital coupon,
9 or an instant redeemable coupon.

10 (b) "Discount" shall mean any reduction from the regular or advertised
11 price offered to consumers on a temporary or conditional basis.

12 (c) "Hardware state" shall mean the condition or mode of existence of
13 a system, component, or simulation, including, but not limited to,
14 battery life, number of wireless connections detected, and age of the
15 device, data that is erased when an online device is restarted or
16 powered down, and data that is retained when an online device is
17 restarted or powered down.

18 (d) "Online device" shall mean a physical object that has built-in
19 resources that allow it to communicate through the internet or a short-
20 range wireless technology and react to interface conditions, including,
21 but not limited to, a laptop computer, a desktop computer, a tablet, a
22 smartphone, or other smart hardware.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. (a) A price offered to a consumer through such consumer's online
2 device shall not be generated by any online retailer or retail mercan-
3 tile establishment, in whole or in part, based on any of the following
4 input data:

5 (i) The hardware or hardware state of such online device;

6 (ii) The presence or absence of any software on such online device.
7 Provided, however, a price may be offered to a consumer through the
8 consumer's online device if the consumer has downloaded an application
9 or software and opted into such application or software to purchase a
10 product or service; or

11 (iii) Geolocation data of the online device.

12 (b) Notwithstanding subparagraph (iii) of paragraph (a) of this subdivi-
13 vision, the geolocation data of the online device may be used, and the
14 consumer's location may be accounted for, to generate a price for the
15 following reasons:

16 (i) To account for the differences in the costs or demands associated
17 with providing a good or service to different consumers;

18 (ii) A surcharge based on the real-time demand for the product or
19 service in the consumer's vicinity, if the product or service is
20 provided immediately upon request; or

21 (iii) Pricing based on price variances at different physical
22 locations, due to legitimate cost or demand differentials or state or
23 local government taxes, duties, or other fees.

24 (c) This section shall not apply to any coupon that is separate from
25 the price, any discount, or any other bona fide rebates, sales, or
26 promotions that reduce the price of goods or services, that are offered
27 or made available to the general public on the same terms, and do not
28 incorporate input data as specified in paragraph (a) of this subdivi-
29 sion.

30 3. The duties and obligations pursuant to this section are cumulative
31 with any other duties or obligations imposed under local, state, and
32 federal law and shall not be construed to relieve any party from any
33 duties or obligations imposed under any applicable laws.

34 § 2. This act shall take effect on the first of January next succeed-
35 ing the date on which it shall have become a law.